

		evidence that Defendant committed the wrongful acts alleged in the FAC. However, such “prior bad acts” evidence is usually inadmissible under the Evidence Code. (See Evid. Code, § 352; see also Evid. Code, § 1102.) Plaintiff also argues that the records will tend to prove that Defendant had a certain character, habit, or custom and that he acted in conformity with this character, habit or custom in committing the wrongful acts. However, Plaintiff provides no evidence that Defendant had any such character, habit, or custom or that the alleged wrongful acts were done in conformity with said character, habit, or custom. Finally, Plaintiff asserts that the records could be used to impeach Defendant. However, Plaintiff presents no factual scenario in which credibility will be an issue in this case or in which Plaintiff would need to impeach Defendant. In fact, Plaintiff has already taken the default of Defendant. (See ROA #31). Thus, Defendant has already conceded the truth of all the allegations of the complaint. The court will order that LASD produce to the court the categories of records for which good cause has been shown. The court will then review the records <i>in camera</i>. In its <i>in camera</i> review, the court will apply Evidence Code section 1045(a)-(d) to determine if any of the records produced by the LASD should be excluded. The court will then order disclosure to Plaintiff of any records produced that are not excluded, subject to the protective order that the records disclosed or discovered may not be used for any purpose other than a court proceeding pursuant to Evidence Code section 1045(e). Defendant shall give notice of this ruling.
6	Jones vs. Fairchild 30-2023-01313310	<u>Order to Show Cause re: Dismissal for Failure to Appear and Case Management Conference</u> The court will hold the hearing on these matters after the hearing on the Special Motion to Strike (Anti-SLAPP).

		<u>Special Motion to Strike (Anti-SLAPP)</u> Defendants Michelle Fairchild’s, Bob Wein’s, and Premiere Choice R.E. Inc.’s Special Motion to Strike Plaintiff’s Complaint Pursuant to C.C.P. § 425.16 – Anti-SLAPP Motion is DENIED. Defendants Michelle Fairchild, Bob Wein, and Premier Choice R.E. Inc. specially move to strike the Complaint of Plaintiff Anne Marie Jones pursuant to Civil Procedure Code section 425.16. <u>Standard for Special Motion to Strike (Anti-SLAPP)</u> Civil Procedure Code section 425.16(b) provides that: “A cause of action against a person arising from any act of that person in furtherance of the person’s right of petition or free speech under the United States or California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the Court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.” (Code Civ. Proc. § 425.16, subd. (b).) In ruling on a special motion to strike under Section 425.16, the court must follow a two-step process. (<i>Baral v. Schnitt</i> (2016) 1 Cal.5th 376, 384-385.) First, the court determines if the party moving to strike a cause of action has shown that the cause of action arises from an act in furtherance of the moving party’s right of petition or free speech. (<i>Ibid.</i>) If the moving party makes the showing required in the first step, the court then determines whether the non-moving party has demonstrated a probability of prevailing on the claim. (<i>Navellier v. Sletten</i> (2002) 29 Cal.4th 82, 88.) “The anti-SLAPP procedures are designed to shield a defendant’s constitutionally protected conduct from the undue burden of frivolous litigation.” (<i>Baral v. Schnitt, supra</i>, 1 Cal.5th 376 at p. 393.) <u>Protected Activity</u> In the first step, the defendant must make a “threshold showing” that the challenged claims arise from protected activity. (<i>Rusheen v. Cohen</i> (2006) 37 Cal.4th 1048, 1056.) “[T]he moving defendant bears the burden of identifying all allegations of protected activity, and the claims
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		for relief supported by them. When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage." (<i>Baral v. Schnitt</i>, <i>supra</i>, 1 Cal.5th 376 at p. 396.) "A defendant meets the burden of showing that a plaintiff's action arises from a protected activity by showing that the acts underlying the plaintiff's cause of action fall within one of the four categories of conduct described in section 425.16, subdivision (e)." (<i>Siam v. Kizilbash</i> (2005) 130 Cal.App.4th 1563, 1569.) These categories are: (1) statements made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law; (2) statements made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law; (3) statements made in a place open to the public or a public forum in connection with an issue of public interest; or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest. (Code Civ. Proc., § 425.16, subds. (e)(1)-(4).) <u>Statements Made Before A Legislative, Executive, or Judicial Proceeding</u> The Complaint alleges that Defendant Michelle Fairchild (Defendant Fairchild) sent a cease-and-desist letter (Cease-and-Desist Letter) to Plaintiff and her company, AM4Inc. dba In the Park Manufactured Homes (In the Park). (Compl., ¶¶ 9, 12, Exh. 1.) Attached to the Cease-and-Desist Letter are 21 statements signed by various owners and sellers (Statements). (Compl., ¶ 13, Exh. 2.) Plaintiff alleges that the Cease-and-Desist Letters and Statements contain false statements that Plaintiff and In the Park do not hold an active real estate license, were improperly soliciting offers and attempting to advertise Defendant Premiere Choice R.E. Inc.'s (Defendant Premiere) exclusive listings, and were engaging in false and misleading business practices by inflating the listing prices. (See Compl., ¶¶ 14-22.)
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		Here, it is undisputed the Cease-and-Desist Letter and Statements were not communications “before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law.” (Code Civ. Proc., § 425.16, subd. (e)(1).) They were only sent to private individuals and were never presented in any governmental proceedings. <u>Statements Made in Connection with an Issue Under Consideration or Review by a Legislative, Executive, or Judicial Body</u> Pre-litigation communications sent in anticipation of litigation contemplated in good faith and under serious consideration qualify constitutes protected activity under the Anti-SLAPP statute. (See <i>CKE Restaurants, Inc. v. Moore</i> (2008) 159 Cal.App.4th 262, 271 [statements made in statutory intent-to-sue notice constituted protected activity]; <i>Comstock v. Aber</i> (2012) 212 Cal.App.4th 931, 944-945 [statements made to human resources manager constituted protected activity because they were necessary to address commonly used affirmative defense in sexual harassment case].) However, Defendants fail show that litigation was contemplated in good faith and under serious consideration. The Cease-and-Desist Letter and Statements contain no mention of legal action and Defendants have initiated no litigation. The Cease-and-Desist Letter and Statements are similar to debt collection efforts, that have been found not to be protected activity. (See <i>A.F. Brown Electrical Contractor, Inc. v. Rhino Electric Supply, Inc.</i> (2006) 137 Cal.App.4th 1118, 1127-1128.) In addition, the Complaint alleges that Defendants distributed the Cease-and-Desist Letter and Statements not only to Plaintiff but also to third parties, misleading those third parties to believe Plaintiff is an unethical or disreputable person. (See Compl., ¶¶ 23-27, 43-44, 58, 66.) Specifically, the Complaint pleads that Defendant Fairchild used the statements to distribute to third-party clients false information that Plaintiff had engaged in unethical conduct. The Complaint also alleges that Defendant Fairchild distributed the Cease-and-Desist Letter containing untrue accusations to four identified industry professionals – real estate broker Defendant Bob Wein, real estate agent Joshua Lukasiewicz, real
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		estate agent Kevin Fairchild, and attorney Neil Cacali. Defendants do not present evidence that the distribution of the Cease-and-Desist Letter and Statements <i>to third-parties</i> (not to Plaintiff) constituted prelitigation communications sent in anticipation of litigation. Defendants fail to explain why sending the allegedly false statements to clients and other real estate professionals was a necessary part of the prelitigation process. Thus, even assuming that the Cease-and-Desist Letter and Statements could be considered prelitigation communications, only the act of sending them to Plaintiff would be protected. However, Defendant Fairchild's conduct in sending the documents is only incidental or collateral to Plaintiff's claims. The principal thrust or gravamen of Plaintiff's claims is that Defendants, by sending the Cease-and-Desist Letter and Statements to third parties, defamed the Plaintiff, placed her in a false light, and caused her emotional distress. (See Compl., ¶¶ 43-44, 48-49, 58-59, 66-67.) "A claim arises from protected activity when that activity underlies or forms the basis for the claim." (<i>Park v. Board of Trustees of California State University</i> (2017) 2 Cal.5th 1057, 1062.) As the Supreme Court has explained: "[T]he defendant's act underlying the plaintiff's cause of action must <i>itself</i> have been an act in furtherance of the right of petition or free speech." (<i>City of Cotati v. Cashman</i> (2002) 29 Cal.4th 69, 78, italics original.) Here, Plaintiff's claims arise out of the distribution of the Cease-and-Desist Letter and Statements to third parties and not to Plaintiff herself. Plaintiff can only be defamed or be placed in a false light by the publication of false information to third-parties. (See Compl., ¶¶ 37-38, 55-56.) Further, Plaintiff does not allege in her Intentional Infliction of Emotional Distress claim that her receipt of the Cease-and-Desist Letter and Statements caused her emotional distress. Rather, the Complaint asserts that the emotional distress arose from the fact that the Cease-and-Desist Letter and Statements were sent to third-parties. (See Compl., ¶¶ 66-67.)
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	For example, Plaintiff attributes her emotional distress to "distribution of false statements demonstrating Plaintiff to be a disreputable business person," "paranoia over gossip spreading and of what will become of her business and license," and "concern[] for her business". (Compl., ¶ 68.) These problems could only arise from the distribution of the Cease-and-Desist Letter and Statements to third-parties and would not have arisen if the documents were only sent to Plaintiff. "[T]here is a difference between allegations that supply the elements of a claim and allegations of incidental background. 'Allegations of protected activity that merely provide context, without supporting a claim for recovery, cannot be stricken under the anti-SLAPP statute.'" (<i>Ratcliff v. The Roman Catholic Archbishop of Los Angeles</i> (2022) 79 Cal.App.5th 982, 1003, citation omitted, quoting <i>Baral v. Schnitt</i> (2016) 1 Cal.5th 376, 394.) Here, the allegations that the Cease-and-Desist Letter and Statements were sent to Plaintiff were only incidental background in the Complaint. They do not support and are not necessary for Plaintiff's claims for recovery and cannot be stricken under the Section 425.16. <u>Statements Made in A Place Open to the Public or A Public Forum in Connection With An Issue of Public Interest</u> In this case, the Cease-and-Desist Letters and Statements were private communications sent to third-party clients and real estate professionals. There is no evidence that they were "made in a place open to the public or a public forum. (Code Civ. Proc., s 425.16, subd. (e)(3).) In addition, for the reasons explained below, there is no evidence that the Cease-and-Desist Letters and Statements related to an issue of public interest. To the contrary, the documents related to private sales that impacted only the third-party buyers and sellers and real estate professionals that received the documents. <u>Other Conduct in Furtherance of the Exercise of the Constitutional Right to Petition or Free Speech</u>
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		<u>in Connection With a Public Issue or an Issue of Public Interest</u> Section 425.16(e)(4), which is referred to as the catchall provision, applies to private communications concerning issues of public interest. (See <i>Hailstone v. Martinez</i> (2008) 169 Cal.App.4th 728, 736.) Courts use a two-part test to determine whether the catchall provision applies to challenged activity. First, the court must decide “what ‘public issue or [] issue of public interest’ the speech in question implicates — a question we answer by looking to the content of the speech.” (<i>FilmOn.com Inc. v. DoubleVerify Inc.</i> (2019) 7 Cal.5th 133, 149.) Second, the court examines the “functional relationship . . . between the speech and the public conversation about some matter of public interest.” (<i>Id.</i> at pp. 149-150.) The second element includes determining if the speaker “participated in, or furthered, the discourse that makes an issue one of public interest.” (<i>Id.</i> at pp. 151.) A public issue includes “conduct that could directly affect a large number of people beyond the direct participants” and a “topic of widespread, public interest.” (<i>Rivero v. American Federation of State, County and Municipal Employees, AFL-CIO</i> (2003) 105 Cal.App.4th 913, 924.) An example would be statements related to an election or political campaign is an issue of public interest. (See <i>Rosenaur v. Scherer</i> (2001) 88 Cal.App.4th 260, 273-274 [anti-SLAPP “applies to actions arising from statements made in political campaigns”].) Consumer protection information that “affects a large number of persons . . . generally is viewed as information concerning a matter of public interest.” (<i>Wilbanks v. Wolk</i> (2004) 121 Cal.App.4th 883, 899.) In <i>Wilbanks v. Wolk</i>, the Court of Appeal noted the statements at issue “were not simply a report of one broker’s business practices, of interest only to that broker and to those who had been affected by those practices[, . . . but] were a warning not to use plaintiffs’ [brokerage] services. In the context of information ostensibly provided to aid consumers choosing among brokers, the statements, therefore, were
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		directly connected to an issue of public concern.” (<i>Id.</i> at p. 900.) Even where some actions of a defendant are protected as being related to a public issue of issue of public interest, not all actions of the defendant will be protected. In <i>All One God Faith, Inc. v. Organic & Sustainable Industry Standards, Inc.</i> (2010) 183 Cal.App.4th 1186, a cosmetic manufacturer sought to enjoin a cosmetics trade association from certifying as “organic” any products that did not meet the standards of the USDA. (<i>Id.</i> at p. 1192.) The Court of Appeal reasoned that even if the act of <i>formulating</i> a proposed industry “organic” standard constituted an exercise of free speech rights on a matter of public concern, the certification of products as “organic” promoted sales of the products; thus, the certification did not contribute to the ongoing public debate regarding the definition of the term “organic” and was not protected. (<i>Id.</i> at p. 1203.) “[T]here should be some degree of closeness between the challenged statements and the asserted public interest [and] the focus of the speaker’s conduct should be the public interest rather than a mere effort ‘to gather ammunition for another round of [private] controversy’” (<i>Weinberg v. Feisel</i> (2003) 110 Cal.App.4th 1122, 1132-1133, citations omitted, quoting <i>Connick v. Myers</i> (1983) 461 U.S. 138, 148.) Here, Defendants fail to show a public issue or issue of public interest implicated by Defendant Fairchild’s alleged communications to the Third-Party Clients and the Third-Party Industry Professionals. Unlike the situation in <i>Wilbanks v. Wolk</i>, where the defendant had publicly posted consumer protection information on a website purporting to provide such consumer information, Defendants here concede the alleged communications by Defendant Fairchild made privately and only to a specified group of persons. Even if the court assumed the communications constituted consumer protection information, Defendants do not show they could or did affect a large number of people beyond the direct participants. The communications were a report of a single competitor’s business practices, of interest only to that competitor and those affected by her
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		purported practices. (See <i>FilmOn.com Inc. v. DoubleVerify Inc.</i>, <i>supra</i>, 7 Cal.5th at p. 153-154 [concluding that private commercial speech between parties that is used for commercial purposes only and that “never entered the public sphere” did not qualify for protection]; <i>Murray v. Tran</i> (2020) 55 Cal.App.5th 10, 34 [statements regarding doctor’s competence made to a private group, which were not designed to be made public and were not to be disclosed to affected patients, did not meet the <i>FilmOn.com</i> criteria].) In short, the Cease-and-Desist Letter and Statements appear to be an effort to gather ammunition for another round of a private controversy rather than an attempt to exercise rights to petition or free speech. (See <i>Weinberg v. Feisel</i>, <i>supra</i>, 110 Cal.App.4th at pp. 1132-1133.) Thus, the statements in question were not made in furtherance of the exercise of the right to petition or free speech relating to a public issue or an issue of public interest. Defendants fail to show that the challenged claims arise from protected activity. Thus, the court need not proceed to the second step of the anti-SLAPP analysis and must deny the motion. Plaintiff shall give notice of this ruling.
7	Kameli vs. English 30-2023-01304346	<u>Motion to Compel Discovery</u> Pursuant to the Notice of Withdrawal of Motion to Compel Further Responses to Form Interrogatories filed September 18, 2023, (ROA #68), this matter is taken OFF CALENDAR.
8	Lowther vs. Pavilion Park Senior 1 Housing Partners 30-2022-01267301	<u>Motions to Compel Discovery</u> Defendant Pavilion Park Senior 1 Housing Partners’ Motion to Compel Plaintiff to Respond to Defendant Pavilion Park Senior 1 Housing Partners’s Form Interrogatories – General, Set One is GRANTED. Defendant Pavilion Park Senior 1 Housing Partners’ Motion to Compel Plaintiff to Respond to Defendant’s Special Interrogatories, Set One is GRANTED.